

walkaway offer.” (Opp. at 2.) This is not the type of prejudice that warrants a denial of leave to amend.

The proposed amendment relies on the same set of facts and requires no additional investigation or rebuttal witnesses. (*City of Stanton v. Cox* (1989) 207 Cal.App.3d 1557, 1563.) In fact, SCM seeks not to expand but to narrow the scope of its Cross-Complaint by deleting the property damage allegations. (Motion at 2:14-16.) The proposed amendment will not require delaying trial, nor will it result in added costs of preparation and/or increased discovery burdens. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) S&S points to no authority, and the Court is not aware of any, that holds that leave to amend should be denied where its permission would negatively impact settlement negotiations.

V. Conclusion

For the foregoing reasons, SCM’s motion for leave to file a Second Amended Cross-Complaint is **GRANTED**.

11. 9:00 AM CASE NUMBER: MSC20-00798
CASE NAME: DAVEN VS. WING ENTERPRISES NKA LITTLE GIANT LADDERS SYSTEMS, LLC
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT ISSUE SANCTIONS UP TO \$2,000.00 AGAINST COUNSEL: BROWN FOR FAILURE TO OBEY COURT ORDERS
FILED BY:

TENTATIVE RULING:

The court issued an order to show cause to Michael Brown, counsel for Plaintiff in writing on April 8, 2026.

PLEASE TAKE NOTICE THAT YOU ARE ORDERED TO APPEAR MAY 29, 2026 AT 9:00 a.m. in Department 32 of the above-entitled court at 725 Court Street, Martinez, California, and show cause, if cause there be, why monetary sanctions of up to \$2000 should not be imposed and why the clerk of the court should not be ordered to report your conduct to the State Bar for disobeying an order of the court in cross examining expert witnesses about the content of tenor of any scientific, technical or professional text, treatise, journal or similar publication without first complying with Evid. Code Section 721. Any response to this OSC must be filed and served at least five court days prior to this hearing.

The court takes judicial notice of the Reporter's Certified and partial transcripts of proceedings from Wednesday, April 1, 2026 outside the presence of the jury*; and Thursday April 2, 2026, the partial Cross Examination of Brian Russell, (Trans. pages 1-39.)

Counsel Brown, in his Response filed May 18, 2026 to the Order to Show Cause admits that during the trial he asked witness Brian Russell "Now are you aware that Erick Knox published a paper disagreeing with that?" (Response, page 4: 5-6.) In his response, Counsel Brown does not suggest that he complied with Evid. Code Section 721 prior to asking this question. An examination of the partial proceedings from April 2, 2026 reveals he did not. His response makes no mention of the court's prior admonishments to him on April 1 and on April 2 not to ask a question about any expert research or publication without first satisfying the requirements of Evidence Code 721(b). Counsel Brown attaches no transcript to his Response and does not deny that he had been so admonished. Instead, his Response recounts certain events and simply omits any mention of the court's admonishments to him about Evidence Code Section 721(b).

Evidence Code Section 721(b) forbids an expert witness from being cross-examined about other research or publications unless one of three specific conditions is met. Section 721(b) provides, in relevant part,

(b) If a witness testifying as an expert testifies in the form of an opinion, he or she may not be cross-examined in regard to the content or tenor of any scientific, technical, or professional text, treatise, journal, or similar publication unless any of the following occurs:

- (1) The witness referred to, considered, or relied upon such publication in arriving at or forming his or her opinion.
- (2) The publication has been admitted in evidence.
- (3) The publication has been established as a reliable authority by the testimony or admission of the witness or by other expert testimony or by judicial notice.

Prior to asking witness Brian Russell on April 2, 2026, "Now are you aware that Erick Knox published a paper disagreeing with that?" Counsel Brown had been admonished at side bar and ordered that he may not mention any studies or publications without first complying with Evid. Code Section 721(b). The court

has a clear recollection that counsel Brown in at least two occasions had been instructed that he could not ask about any outside report or study without first complying with Evidence Code Section 721.*

Counsel Brown was first admonished about Evidence Code section 721(b) on April 1, 2026, during his cross examination of defense expert witness Dr. David Fortenbaugh. (Brons Decl., page 2: 3-10; page 3:11-26; page 4:14-17)* As stated in the Brons Decl., “To my recollection, when Defense counsel Mr. Kronenberg objected, the court halted the proceedings – allowing the jury to leave, Mr. Brown was then admonished not to ask any defense witness about the Article without laying proper foundation. The Court had already ruled what type of evidence the Article was to be used as *i.e.*, that it fell within the scope of CCP Sec. 721, then Mr. Brown was supposed to identify what kind of witness is being provided the document (*i.e.* expert or non-expert), and then identify whether any of the factors under CCP Sec. 721(b) have been satisfied to allow for it to be provided to the witness, or also address whether there was another exception to the rule against hearsay. Mr. Brown did not do any of these steps.” (Brons Decl. Page 4:23 – 5:2.) The court finds the Brons Declaration’s description of the events of April 1, 2026 is consistent with her recollection of the events. On April 1, 2026, Counsel Brown was instructed not to inquire about expert research or studies without complying with Section 721(b) as follows:

The Court: So, Counsel, unless—as we discussed at the bench, unless you meet the requirements of Evidence Code 721(b), it is inappropriate to cross-examine an expert witness on a publication. So unless you can proffer taht you can meet one of the three requirements, I need you to move on.

Mr. Brown: Okay.

(Transcript of Proceedings April 1, 2026, 4:20 p.m., page 1:8-14).

On April 1, 2026, after the jury was excused, Counsel Brown was specifically instructed that attempting to cross-examine a witness specifically about the Erick Knox article was “entirely inappropriate, illegal and barred under the hearsay laws.” The court’s instructions were clear and specific at the end of the day on April 1, 2026. (See colloquy in Transcript from April 1, 2026 pages 5-15.)

The court's recollection that Counsel Brown was admonished about Evid Code Section 721(b) on April 1, 2026 is also supported by the partial transcript of proceedings on April 2, 2026. As soon as counsel Brown asked the question at issue, and counsel Kronenberg requested a sidebar, the transcript reflects that the court said, "I have made rulings *on this very subject*. You cannot try and backdoor in some kind of outside person's opinion that has not been properly laid a foundation before the Court. (sic) Erick Knox is not here and you can't get what you think his opinions may or may not be into this trial by asking improper questions." (Trans, page 26: 9-15, emphasis added).

Another transcribed verification of the court's recollection that she ordered counsel Brown not to ask about any outside expert research or study unless he first complied with Evid Code 721(B) is in a statement by Mr. Kronenberg from the partial transcript of April 2, 2026 proceedings, at page 34:5-18, as follows.

Court: You cannot ask about any expert study or other research unless 721(b) of the Evidence Code has been satisfied. And if you are not sure what those requirements are, then you'd better not ask at all. And I'm going to make *another* order that you cannot ask about any outside expert research or study unless you have, outside the presence of the jury and to the Court's satisfaction, satisfied Evidence Code 721(b) for cross-examining about an outside expert's study.

Mr. Brown: Very well.

Mr. Kronenberg: And your Honor, I'm not gonna beat a dead horse. I mean, I understand that you just issued the order. **That is the identical order you issued yesterday. It didn't work yesterday.**

Trans. Page 34: 5-18 (emphasis supplied).

The court finds by a preponderance of the evidence that attorney Michael Brown, having twice been specifically admonished by the court not to cross examine an expert witness about the content or tenor of any scientific, technical, or professional text, treatise, journal, or similar publication without first complying with Evid. Code Section 721 on Wednesday April 1, 2026 and again at on April 2, 2026, asked witness Brian Russell, "Now, are you aware that Erick Knox published

a paper disagreeing with that?” without first complying with section 7231(b). (Trans. Page 26: 1-3.) The court finds that this was a direct violation of the court’s order, committed in open court, on the record, in front of the jury.

The court finds that Counsel Brown’s Response to the OSC is troubling. First, Counsel Brown does not attach any transcripts to his response to the OSC. Second, it appears that Counsel Brown acknowledges that the court’s ruling preventing him from asking Dr. Fortenbaugh on April 1, 2026 about Dr. Knox’s publication was based on Counsel Brown’s failure to comply with Evidence Code section 721. (Response, page 3:17-25) Dr. Fortenbaugh did not refer to, consider or rely on an article by Erick Knox. (Brons Decl., page 3:11-12.) Thus, Counsel Brown admitted that the Court prevented him from inquiring into an article or publication on April 1, 2026 during the testimony of Dr. Fortenbaugh, and further admitted that he was instructed not to violate Evidence Code section 721(b) on April 1, 2026.

The court notes that Counsel Brown does not take acknowledge he directly violated the court’s repeated orders to comply with Evidence Code Section 721(b) before asking a witness about any expert research or study. His Response omitted any mention that he had been specifically admonished to comply with Evidence Code Section 721 twice before he asked the question, “Now, are you aware that Erick Knox published a paper disagreeing with that?” And nothing in the record shows any attempt in his questioning to satisfy Section 721(b) prior to asking that question.

The court notes that Counsel Brown does not express remorse for his conduct and his choices. Indeed, Counsel Brown’s Response to the OSC does not appear even to acknowledge the reason for the OSC. He does not mention any reasons that would mitigate the seriousness and the brazenness of his conduct.

The court finds that Counsel Brown by his lack of acknowledgment of the reason for this OSC demonstrates that he is at high risk for disobeying a similar court order in the future. In addition to a lack of respect for court orders, this demonstrated a disregard for the fairness of court processes.

The Court imposes a monetary sanction of \$1500 under Code of Civil Procedure 177.5 for violation of a lawful order. This sanction is due and payable to the

Contra Costa Superior Court within 30 calendar days of service of notice of entry of order. Further, pursuant to Business and Professions Code Section 6086.7, the Court instructs the clerk of the Court to report these findings and orders to the State Bar of California.

*The court reserves the right to supplement this opinion with additional citations to the certified transcript from April 1, 2026.

12. 9:00 AM CASE NUMBER: N26-0240
CASE NAME: CHELSEA STORKAN VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS
FILED BY: STORKAN, CHELSEA
TENTATIVE RULING:

Hearing on this petition is continued on the court's motion to August 7, 2026 at 9:00 a.m., Dept. 32.

The administrative record was not received by the Court until May 21, 2026, which was too late for the Court to review for this hearing.

Opposition, if any to the Petition for Writ of Mandamus must be filed and served 9 court days in advance of the hearing. Reply pleadings must be filed and served 5 court days in advance of the hearing.

13. 9:00 AM CASE NUMBER: N26-0285
CASE NAME: TANGELA MENZISE VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:
TENTATIVE RULING:

Petition for Writ of Mandate is **denied without prejudice**. **The hearing on this matter will be continued to October 23, 2026 at 9:30 a.m. in Department 32.**

Petitioner has failed to provide the Court with a certified copy of the administrative record. (Govt. Code §11523.) Petitioner has the burden to